

STATE OF NEW YORK

9373--A

2025-2026 Regular Sessions

IN ASSEMBLY

December 19, 2025

Introduced by M. of A. McDONALD, PAULIN, GLICK, GRIFFIN, COLTON, SHIMSKY, McMAHON, DINOWITZ, ROSENTHAL, SIMON, REYES, CUNNINGHAM, VALDEZ -- read once and referred to the Committee on Governmental Operations -- recommitted to the Committee on Governmental Operations in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the state finance law, in relation to the purchase of firearms, ammunition, and firearm accessories

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The state finance law is amended by adding a new section 139-n to read as follows:

§ 139-n. Statement in bids for the purchase of firearms, ammunition, and firearm accessories. 1. (a) Every bid hereafter made to the state or any public department or agency thereof, where competitive bidding is required by statute, rule or regulation, for the purchase of firearms, ammunition, or firearm accessories, shall contain the following statement subscribed by the bidder and affirmed by such bidder as true under the penalty of perjury:

"By submission of this bid, each bidder and each person signing on behalf of any bidder certifies, and in the case of a joint bid each party thereto certifies as to its own organization, under penalty of perjury, that the bidder:

(i) is duly licensed pursuant to applicable federal, state, and local law to sell or transfer firearms, ammunition, or firearm accessories, where such licensure is required;

(ii) is in compliance with all applicable federal, state, and local laws, rules, and regulations relating to the sale, transfer, storage, and disposition of firearms, ammunition, and firearm accessories;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (iii) does not sell, offer for sale, advertise, market, distribute, or
2 otherwise transfer unserialized gun build kits or firearm precursor
3 parts;

4 (iv) has and has implemented written policies, procedures, or prac-
5 tices to prevent, detect, and screen for straw purchases and firearm
6 trafficking;

7 (v) has and has implemented written policies, procedures, or practices
8 to prevent, detect, and screen against the sale or transfer of firearms,
9 ammunition, or firearm accessories to any individual prohibited from
10 possessing a firearm by federal, state, or local law or court order;

11 (vi) has and has implemented written policies, procedures, or prac-
12 tices to prevent, detect, document, and report the theft or loss of
13 firearms, ammunition, or firearm accessories;

14 (vii) provides training to employees regarding compliance with appli-
15 cable federal, state, and local laws, rules, and regulations relating to
16 the sale or transfer of firearms, ammunition, and firearm accessories;
17 and

18 (viii) operates a digital video surveillance system at each premises
19 where firearms, ammunition, or firearm accessories are sold, stored, or
20 transferred."

21 (b) Every bid hereafter made to the state or any public department or
22 agency thereof, where competitive bidding is not required by statute,
23 rule or regulation, for the purchase of firearms, ammunition, or firearm
24 accessories, may contain, at the discretion of the department, agency or
25 official, the certification required pursuant to paragraph (a) of this
26 subdivision.

27 2. Notwithstanding the foregoing, the statement required by paragraph
28 (a) of subdivision one of this section may be submitted electronically
29 in accordance with the provisions of subdivision seven of section one
30 hundred sixty-three of this chapter.

31 3. A bid shall not be considered for award, nor shall any award be
32 made to a bidder who has not complied with subdivision one of this
33 section; provided, however, that if the bidder cannot make the foregoing
34 certification, such bidder shall so state and shall furnish with the bid
35 a signed statement which sets forth in detail the reasons therefor. The
36 department, agency or official receiving such bid may request documenta-
37 tion, including inspection reports, notices of violation, or other
38 records, as may be necessary to verify any certification or signed
39 statement submitted pursuant to this section.

40 4. Any bid hereafter made to the state or any public department, agen-
41 cy or official thereof, by a corporate bidder for the purchase of
42 firearms, ammunition, or firearm accessories, where such bid contains
43 the statement required by subdivision one of this section, shall be
44 deemed to have been authorized by the board of directors of such bidder,
45 and such authorization shall be deemed to include the signing and
46 submission of such bid and the inclusion therein of such statement as
47 the act and deed of the corporation.

48 § 2. This act shall take effect April 1, 2027.